

IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
CIVIL DIVISION

CHRISTOPHER HANSON, individually
and as attorney for himself and attorney/
next friend for his minor children,

Plaintiffs/Petitioners,

v.

Case No.: 25-CA-010255

Division: B

THIRTEENTH JUDICIAL CIRCUIT, et al.

Defendants/Respondents.

**ORDER ON "PLAINTIFF'S MOTION FOR SANCTIONS AND ENTRY OF
PEREMPTORY WRIT OF MANDAMUS, OR, ALTERNATIVELY, FOR WRITTEN
ORDER WITH FINDINGS SETTING EVIDENTIARY HEARING" AND
ORDER ON "PLAINTIFF'S COMBINED MOTION FOR INTERLOCUTORY
RECONSIDERATION, REHEARING UNDER FLA. R. CIV. P. 1.530(g), AND
CLARIFICATION ON ORDERS AT DOCKET 80 AND 81"**

THIS CAUSE came before the Court on "Plaintiff's Motion for Sanctions and Entry of Peremptory Writ of Mandamus, or, Alternatively, for Written Order with Findings Setting Evidentiary Hearing," filed on April 15, 2026, and "Plaintiff's Combined Motion for Interlocutory Reconsideration, Rehearing Under Fla. R. Civ. P. 1.530(g), and Clarification on Orders at Docket 80 and 81," filed on May 28, 2026. The Court heard oral argument on August 17, 2026. The Court, having reviewed the motions and the record, heard oral arguments of the parties, and being otherwise fully advised in the premises, hereby finds as follows:

I. APRIL 4, 2025, HEARING VIDEO FOOTAGE

The Court first addresses the issue concerning the April 4, 2025, hearing-room video recording (hereinafter the "Video"). The Court understands that Plaintiff made a public records request seeking release of the Video¹, to which Defendant, the Thirteenth Judicial Circuit Court,

¹ The Plaintiff's request for the Video through the public records pathway tacitly recognizes and is consistent with his original position that the footage is a public record. Notably, Plaintiff has also consistently pointed the Court to broad propositions of law and particular authorities and precedents sounding in Chapter 119 in support of his petition. However, during oral arguments regarding the exemption and good cause issue at the August 17, 2026, hearing there was a lack of clarity on whether or not Plaintiff agreed with the Thirteenth Judicial Circuit that Chapter 119 covers the Video. These conflicts do not need to be clarified or resolved at this stage. The Court will assume for purposes of

has raised section 119.071(3)(a), Florida Statutes, as an exemption. During the August 17, 2026, hearing, the Thirteenth Judicial Circuit represented to this Court that section 119.071(3)(a)3.d., Florida Statutes, allows Plaintiff to obtain the Video footage upon a showing of good cause before a court of competent jurisdiction. The Thirteenth Judicial Circuit further asserted that, were Plaintiff to obtain an order finding good cause, it would not interpose another exemption or objection and would provide Plaintiff the Video. At the hearing, both parties acknowledged that this Court is a court of competent jurisdiction for the purposes of section 119.071(3)(a)3.d., Florida Statutes.

At the hearing, Plaintiff emphatically asserted he has shown good cause and is entitled to the Video footage urgently. This Court accepts Plaintiff's assertion as an *ore tenus* motion for the Court to find good cause for the Thirteenth Judicial Circuit to disclose the Video to Plaintiff under section 119.071(3)(a)3.d., Florida Statutes. As such, it is **ORDERED** that the Thirteenth Judicial Circuit must provide a written response within **seven (7) days** of this Order either: (a) agreeing that there is good cause for Plaintiff to receive the Video; or (b) providing a statement explaining why there is not good cause and therefore the Video should not be provided to Plaintiff.

If Defendants agree that good cause exists, or fail to timely articulate good cause as to why the Video should not be provided, the Court will enter an order finding good cause under section 119.071(3)(a)3.d., Florida Statutes, and direct release of the Video consistent with Defendants' representation to the Court. If Defendants timely articulate a statement they contend shows why there is not good cause and why the Video should not be provided, the Court will resolve the good-cause question expeditiously based upon the parties' submissions.

II. PLAINTIFF'S MOTION FOR SANCTIONS AND ENTRY OF PEREMPTORY WRIT OF MANDAMUS (DOC. 78)

The Court now turns to the remaining issues raised in Doc. 78, addressed in the order in which they appear in that motion. In "Plaintiff's Motion for Sanctions and Entry of Peremptory Writ of Mandamus, or Alternatively, for Written Order with Findings Setting Evidentiary Hearing," Plaintiff requested that the Court (a) enter a peremptory writ of mandamus on the

this analysis only that the original basis for the request, under Chapter 119, is the appropriate framework to apply. This may permit a more prompt resolution of the dispute regarding the Video, or narrow the issues to facilitate resolution with greater judicial economy as appropriate for this type of action. However, to the extent the dispute is not resolved, the Court is not bound by application of this assumption here and may revisit the issue of whether Chapter 119 applies to the Video before issuing a final ruling.

grounds that Defendants waived any claimed exemption as a matter of law; (b) in the alternative, strike Defendants' confidentiality assertion from the record; (c) in the further alternative, impose sanctions on Defendants; (d) in the further alternative, enter a written order identifying and setting an evidentiary hearing on the identified issues of material fact; and (e) granting such other relief the Court deems just and proper.

- (a) As to Plaintiff's request for a peremptory writ of mandamus on the existing record, such request is **DENIED**. When a trial court receives a petition for a writ of mandamus, it must first determine whether the petition is facially sufficient. If the petition is not facially sufficient, the court may dismiss the petition. *See Davis v. State*, 861 So.2d 1214, 1215 (Fla. 2d DCA 2003). If the petition for a writ of mandamus is facially sufficient, the trial court must then issue an alternative writ of mandamus requiring the respondent to show cause why the writ should not be issued. *Moore v. Ake*, 693 So.2d 697, 698 (Fla. 2d DCA 1997). "If the petition and answer to the alternative writ raise disputed factual issues, the trial court must resolve these issues upon evidence submitted by the parties." *Radford v. Brock*, 914 So.2d 1066, 1068 (Fla. 2d DCA 2005). In the instant case, there are factual disputes. Consequently, the Court would err in entering a peremptory writ without a trial on the disputed issues.
- (b) Plaintiff's alternative request to strike Defendants' confidentiality assertion and enter the peremptory writ is **DENIED**. The Court notes that Plaintiff's contention that Defendants "waived" any exemption by failing to provide a privilege log or a Rule 2.420(e) motion is not supported by Florida law.
- (c) Plaintiff's request for sanctions is **DENIED WITHOUT PREJUDICE**. Under Florida Rule of General Practice and Judicial Administration 2.420(i), sanctions are available "[a]fter notice and an opportunity to respond, and on determining that a motion, filing, or other activity described [in the rule] was not made in good faith and was not supported by a sound legal or factual basis" The record at this stage does not establish the bad faith required for sanctions. Likewise, the record at this stage does not show that sanctions are appropriate under chapter 119, Florida Statutes, Florida Rule of Civil Procedure 1.380, section 57.105, Florida Statutes, or the Court's inherent authority.
- (d) As to Plaintiff's request for a written order with findings identifying material facts in genuine dispute and setting an evidentiary hearing, within **fourteen (14) days** from the

date of this Order, Defendants who claim that any responsive record other than the Video is exempt or confidential must file a written statement that, as to each such record: (1) identifies the record by date, author, recipient(s), and general subject matter; and (2) states the specific constitutional, statutory, or rule-based basis for exemption or confidentiality claimed.

- (e) Contemporaneously with the statement required in Paragraph II(d) above, Defendants must tender to the Court, for in-camera inspection, any record as to which an exemption is claimed.

III. PLAINTIFF'S COMBINED MOTION FOR INTERLOCUTORY RECONSIDERATION, REHEARING, AND CLARIFICATION (DOC. 86)

The Court now turns to the issues raised in "Plaintiff's Combined Motion for Interlocutory Reconsideration, Rehearing Under Fla. R. Civ. P. 1.530(g), and Clarification on Orders at Docket 80 and 81," filed on May 28, 2026. In his Motion, Plaintiff requests (a) reconsideration and rehearing of the April 28 Order and that the Court vacate or condition the discovery stay upon Defendants' immediate, prompt production of a record-by-record privilege log; (b) clarification of the Court's compliance under Florida Rules of Civil Procedure 1.630(e) and 1.140(d) to formally rule on the facial legal sufficiency of Defendants' return; (c) clarification as to whether Defendants will be forced to comply with their statutory duties before Plaintiff can be forced to identify disputed facts; (d) clarification as to the Court's intended procedure and timing for hearing and ruling upon Plaintiff's April 15, 2026, Motion for Sanctions and Peremptory Writ; (e) confirmation that the reference to an April 18, 2026 order was a scrivener's error; (f) a toll on Plaintiff's obligation to submit scheduling availability dates under the April 28 Order pending a formal ruling on the clarifications sought in Plaintiff's Motion, and (g) all other relief that justice requires and/or the Court may order.

- (a) To the extent Plaintiff's motion seeks rehearing under Florida Rule of Civil Procedure 1.530(g), Plaintiff's request is **DENIED**. A motion for rehearing under the Rule is appropriate only for final judgments. The two orders challenged by the motion are interlocutory, non-final orders. To the extent Plaintiff's motion requests reconsideration of the April 28, 2026, and May 5, 2026, Orders, the Court **GRANTS IT IN PART** as set forth below.

- a. The Order staying discovery is **NOT VACATED**. However, the parties' obligation to identify disputed facts under the May 5 Order is **TOLLED** until Defendants have complied with the directive to identify any claimed exemptions to responsive records.
- (b) Plaintiff's request for clarification on the facial sufficiency of Defendants' return is **GRANTED** to the following extent: the Court will determine the legal sufficiency of Defendants' return before any final evidentiary hearing is held.
- (c) As to Plaintiff's request for clarification that Defendants must comply with their statutory obligations, the Court **CLARIFIES** that Defendants must make the particularized exemption showing and tender the records for in-camera inspection before Plaintiff is required to identify any disputed facts or before a final evidentiary hearing is set.
- (d) The Court heard the parties' oral arguments on the Motion for Sanctions on August 17, 2026, and is ruling on the motions in the instant Order.
- (e) The Court **CONFIRMS** that the reference to an order "dated April 18, 2026" is a scrivener's error and is corrected to refer to the Order entered on April 28, 2026 (Doc 80).
- (f) Plaintiff's obligation to submit scheduling availability dates under the April 28 Order is **TOLLED** consistent with Paragraph III.(a) above.
- (g) In all other respects, the Motion is **DENIED**.

27TH **DONE AND ORDERED** in Chambers in Clearwater, Pinellas County, Florida, this day of August 2026. A true and correct copy of the foregoing has been furnished to the parties listed below.



SHERWOOD COLEMAN
CIRCUIT COURT JUDGE

Copies furnished to:

Plaintiff
[REDACTED]

Defendant Clerk
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